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Judgment Sheet

IN THE LAHORE HIGH COURT RAWALPINDI BENCH RAWALPINDI JUDICIAL DEPARTMENT

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CIVIL REVISION NO.856-D of 2015

NISAR AHMED

Versus

Haji FAZAL DAD

JUDGMENT

Date of hearing:	13.09.2021
Petitioner by:	Mr. Muhammad Nasrullah Malik, Advocate.
Respondent by:	Nemo.

MIRZA VIQAS RAUF, J. This petition under Section 115 of the Code of Civil Procedure (V of 1908) (hereinafter referred as "CPC") calls in question the judgment and decree dated 17th June, 2015, whereby the learned Additional District Judge, Rawalpindi, while dismissing the appeal preferred by the petitioner affirmed the judgment and decree dated 24th February, 2015 passed by the learned Civil Judge Class-I, Rawalpindi.

2. Facts in brief necessary for adjudication of instant petition are that the petitioner instituted a suit for pre-emption and permanent injunction averring therein that the respondent purchased land measuring 05 Kanal 07 Marla bearing Khewat No.216 Khatooni No.325 Khasra Nos.562 & 665 situated in the revenue estate of Peelo Tehsil and District Rawalpindi but without notice to him. As per averments contained in the plaint, the petitioner attained the

knowledge about the sale on 17th June, 2014 whereafter he exercised his right of pre-emption. It was averred in the plaint that sale was effected through mutation No.960 dated 31st May, 2014. While resisting the suit the respondent submitted his written statement wherein he raised an objection that suit is barred by time, as the sale took place on 25th September, 2013 through a registered sale deed bearing No.12277. Alongwith the written statement an application under Order VII Rule 11 of "CPC" seeking rejection of plaint was also moved. The petitioner then moved an application seeking amendment in the plaint on the ground that he was having no knowledge about the registered sale deed, which fact revealed upon him on submission of written statement by the respondent and as such he intends to introduce an amendment in the plaint to this effect. Both the applications were decided by the learned Civil Judge Class-I, Rawalpindi through judgment and decree dated 24th February, 2015 and the application for amendment moved by the petitioner was dismissed whereas while allowing application under Order VII Rule 11 of "CPC" moved by the respondent plaint was rejected in terms of the above said provision of law being barred by time. The petitioner, being aggrieved of the said judgment and decree though preferred an appeal before the learned Additional District Judge, Rawalpindi but that was dismissed through impugned judgment.

3. Learned counsel for the petitioner contended that question of limitation has not been properly dealt with by the courts below. He added that there was no notice to the petitioner in terms of Section 31 of the Punjab Pre-emption Act, 1991 and as such limitation would run from the date of knowledge and not from the date when the sale deed was attested. It is contended with vehemence by learned counsel for the petitioner that concurrent findings are not tenable under the law. Placed reliance on *SHOUKAT HAYAT versus LIAQUAT KHAN* **(2005 YLR 60)**.

4. Heard. Record perused.

5. Though initially it was the claim of the petitioner that sale in question was effected through mutation but on submission of written statement by the respondent it divulges that with regard to sale transaction, a registered sale deed was executed. This was the reason that the petitioner moved an application under Order VI Rule 17 of "CPC" seeking amendment in the plaint in the light thereof which was discarded.

6. Leaving aside aspect of amendment in the plaint in such a situation it is observed that moot point involved in the lis is that what would be the limitation for instituting a suit for pre-emption in case sale is effected through registered sale deed. Section 30 of the Punjab Pre-emption Act, 1991 (hereinafter referred "Act, 1991") deals with the subject, which reads as under :-

> **"30. Limitation.—** The period of limitation for a suit to enforce a right of pre-emption under this Act shall be four months from the date—
> (a) of the registration of the sale deed;
> (b) of the attestation of the mutation, if the sale is made otherwise than through a registered sale deed;
> (c) on which the vendee takes physical possession of the property if the sale is made otherwise than through a registered sale deed or a mutation; or
> (d) of knowledge by the pre-emptor, if the sale is not covered under paragraph (a) or paragraph (b) or paragraph (c).**"**
>
> (Underlining is supplied for emphasis)

It is manifestly clear from the above that in case of sale through registered sale deed, the limitation for instituting a suit for pre-emption is four months from the date of the registration of the sale deed.

7. Adverting to the contention of learned counsel for the petitioner that limitation in such a case would run from the date of knowledge of the petitioner, it appears that such an argument is

highly misconceived. Section 30 of "Act, 1991" at the face of it provides four eventualities to compute the limitation for instituting a suit for pre-emption. All four are independent and contemplating different events for the purpose of calculating the limitation for a suit to enforce a right of pre-emption. It appears that argument of learned counsel to this effect hinges upon clause (d) of Section 30. Needless to observe that clause (d) of Section 30 is not an exception to the provision, rather it is a residual provision and would only come into play if none of the preceding clauses are applicable or attracted. It thus can safely be inferred that where a case is covered by any specific earlier clauses i.e. (a) to (c), clause (d) cannot be resorted to. In the case of *Mst. KAUSAR PARVEEN versus MUHAMMAD IQBAL* **(PLD 2012 Supreme Court 760)** the Hon'ble Supreme Court of Pakistan has outlined the scope of Section 30 of "Act, 1991" in the following manner :-

> **"**5. As regards the question about the effect and interaction of section 30(d) and the preceding clauses (a)(b)(c) thereto, it may be held that section 30 has four parts/components, each of which is a separate and independent provision in its self contemplating different eventualities for the purpose of limitation of four months, the language in this context of all the clauses of the section are clear and unambiguous, section 30(d) is not an exception to clauses (a) to (d), rather it is a residual provision and would only come into play if none of the preceding clauses are applicable/attracted. But, where a case is covered by any specific earlier clause, clause (d) cannot be resorted to. In view of the above, this appeal has no merit and is accordingly dismissed.**"**

8. So far issuance of notice under Section 31 of "Act, 1991" is concerned, it is observed that Sections 30 & 31 are independent in their nature. Both the provisions are having no effect and impact on each other. The combined analysis of both the provisions clearly reflects that limitation for instituting a suit for pre-emption cannot be commanded and controlled by the latter provision. Guidance in this respect can again be sought from the case of ***Mst. KAUSAR PARVEEN*** *supra*. The relevant extract from the same is reproduced below :-

> **"**4. We have examined both the judgments and have also applied our mind to the provisions of sections 30 and 31 of the Act. In our candid view, both these sections are independent of each other having no effect and impact on each other. Though it is mandated by section 31 of the Act that a public notice be issued in terms thereof, but by no stretch of interpretation this provision (Section 31) can be held to regulate and control the period of limitation prescribed by Section 30, which section in clear and unequivocal terms prescribes ***"the period of limitation for a suit to enforce a right of preemption under this Act shall be four months from the date--(a) of the registration of the sale-deed"***. If the intention of the legislature was to make the above period of limitation subject and subservient to the requirement of section 31, the legislature would have clearly indicated its intention by the use of appropriate expression and/or words in either of the two sections, such as, that subject to the issuance of a notice under section 31 the period of limitation shall be four months in the 'cases covered by subsections (a) and (b) of section 30. But, this is not so and, therefore, we cannot read into section 30 by implication or on the basis of any other rule of interpretation the provisions of section 31 and the requirement of notice as a condition precedent for computing the period of limitation and to hold that in the absence thereof (the notice), the date of knowledge shall be the starting point of four months limitation.**"**

9. Needless to observe that had it been the intent of legislature to make the period of limitation provided under Section 30 of "Act 1991" as a subservient to the requirement of Section 31, the legislature would have clearly indicated its intention by the use of appropriate expression and/or words in either of the two sections. The above view was even affirmed by the Hon'ble Supreme Court of Pakistan in its judgment reported as *SARD ALI KHAN, ETC. versus BADSHAH KHAN* **(NLR 2013 Civil 459)**.

10. Though in the case of ***Shaukat Hayat's*** *supra* it was held by a learned Single Judge of this Court that if no notice in terms of Section 31 of "Act, 1991" has been issued by the concerned revenue official then mutation by itself cannot be considered as a notice to the public at large as it is contrary to the provisions of the Act ibid and if the same is considered as a notice then Sections 13, 30 and 31 of the Act would become redundant. Suffice to observe that in view of well settled and unequivocal principle of law enunciated in the above judgments by the honourable apex court, view taken by the

learned Single Judge of this Court in ***Shaukat Hayat's*** case *supra* would be of no avail as in terms of Article 189 of the Constitution of the Islamic Republic of Pakistan, 1973 any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other courts in Pakistan. The nutshell of above discussion is that suit was undoubtedly barred by time and it was rightly adjudged so by the courts below.

11. There are concurrent findings of facts recorded by both the courts below which are completely in consonance with the law. The revisional jurisdiction has a very limited scope and unless the petitioner(s) establish(es) that order or judgment under assailance suffers with infirmities as hedged in Section 115 of "CPC" he/they could not succeed. As no illegality or material irregularity is pointed out by the petitioner in the concurrent findings of the courts below, so exercise of revisional jurisdiction is unwarranted. Consequently this civil revision, being without any merits is **dismissed** with no order as to costs.

(MIRZA VIQAS RAUF)
JUDGE

APPROVED FOR REPORTING

JUDGE

*Shahbaz Ali**